

Institutional Betrayal and DARVO

A documented case under the Smith & Freyd framework — Six High Court proceedings, four jurisdictions, twenty-six months

Case references

BV20D01752 | AC-2025-LON-004293 | BL-2024-001217 | CA-2024-001342
| FA-2026-000019 | N08YX064
CCR-6501-26-0100-000 | CRN 01/7340002/26

Referred to:

Government · Opposition · Parliamentary Committees · Law Enforcement
Full institutional courage map at Part 10

Nadia Zahmoul

Litigant in Person

29 April 2026

Veritas Numquam Perit

A documented case under the Smith & Freyd framework — Six High Court proceedings, four jurisdictions, twenty-six months

Nadia Zahmoul · Litigant in Person · nadia@rosekross.com · Address withheld throughout proceedings · 29 April 2026

Case references:

- BV20D01752 — Family Division — Mr Justice MacDonald
- AC-2025-LON-004293 — Administrative Court (Judicial Review) — Mrs Justice Collins Rice
- BL-2024-001217 — Chancery Division — Master Teverson (sitting in retirement)
- CA-2024-001342 — Court of Appeal — concluded
- FA-2026-000019 — Family
- N08YX064 — Withers / Anthony Gold — default judgment

Veritas Numquam Perit

CONTENTS

- Executive summary
- Part 1 — The framework: Smith & Freyd, DARVO, Institutional Betrayal, Institutional Courage
- Part 2 — Who I am
- Part 3 — The substantive harm: a two-move pattern in DARVO terms
- Part 4 — The seven institutional behaviours, applied to my case
- Part 5 — The institutional VOID: where there is no judicial act
- Part 6 — The Submission Index: 233 submissions, 47% met with silence
- Part 7 — The financial expression of DARVO
- Part 8 — Six live proceedings, four jurisdictions, one person
- Part 9 — The escalation tracks now live
- Part 10 — Why each recipient is on actual notice: the institutional courage map
- Part 11 — What I am seeking: institutional courage in operation
- Part 12 — What this record is, and is not
- Annexes and cross-references
- Bibliography

EXECUTIVE SUMMARY

I am Nadia Zahmoul. I am autistic (NHS diagnosis, Central London Adult Autism Service, July 2025), have Post-Traumatic Stress Disorder (chronic since 2013), and have Sjögren's Syndrome (auto-immune, biopsy-confirmed October 2025; in active flare). I am a litigant in person across six live High Court proceedings. I have no income. I have no legal

representation. I started my career as an equity research analyst at Lehman Brothers in New York. I entered family proceedings in 2021 with legal representation, a court-appointed financial expert, documentary evidence of asset non-disclosure worth approximately £141 million, and a formal criminal referral already active with the United States Internal Revenue Service Criminal Investigation Division. I left those proceedings with £89 in my bank account, no income, no representation, and a debt that is now over £1.05 million and accruing at £281 a day.

The gap between those two facts is not the result of my case being heard and decided against me. It is the result of my case never being heard at all.

This report sets out, under a recognised analytical framework, what was done, what was not done, what was suppressed, and what was substituted in its place. It applies the Smith & Freyd (2014) Institutional Betrayal framework and the related DARVO model (Freyd 1997) to the documentary record. Both frameworks are peer-reviewed psychological research; both have crossed from academic research into recognised analytical tools in legal proceedings, including in an English High Court fact-finding judgment delivered on 28 July 2025.

The substantive harm in two moves

Move 1 — suppression of disability. During the ten-day final hearing in BV20D01752 in February 2024, my autism and PTSD were the subject of expert evidence, oral evidence, written submissions, and clinical reports. Attendance notes from the hearing record 22 or more references to those conditions. The judgment of 18 April 2024 contains 111 paragraphs and zero references to autism, PTSD, or any disability. The disability evidence put before the court was erased from the judgment.

Move 2 — re-characterisation of presentation as bad character. Disability evidence cannot be erased without leaving an accounting problem: how does the court describe the disabled person if her disability is not on the page? The judgment solves that problem by re-describing my documented autistic presentation in moral terms. Paragraph 64 of the 18 April 2024 judgment calls it "*obsession*" "*bordering on the concerning*". The costs judgment of 24 May 2024 calls it "*disruptive behaviour*" and charges me £255,654 for it. The judgment of 8 May 2025 calls it "*deliberately obstructive*" and "*verbose and rambling*". What expert evidence would have called sustained focus, detailed engagement, and direct communication — classic autistic traits — was re-described as moral failing. The disabled person became a person of bad character. The financial consequences flowing from these characterisations include £255,654 in costs and the £1,008,848.42 Detach Lending Limited debt now before the Chancery court.

These two moves are the substantive harm. Everything else in this case is downstream of them. They constitute, on the documentary record, the operation of DARVO at the level of judicial drafting: Deny (the disability evidence), Attack (recharacterise the disabled person's presentation as moral failing), Reverse Victim and Offender (charge the disabled person £255,654 for the symptoms of her disability).

The institutional pattern in three numbers

The Submission Index that accompanies this report documents 233 distinct outgoing submissions made by me to courts, government, parliament, regulators, and law enforcement between February 2024 and 29 April 2026:

Outcome	Count	Percentage
Submissions met with institutional silence	109	47%
Submissions refused on documented mischaracterisation	45	20%
Submissions determined on the substance of the matter raised	14	6%

Forty-seven per cent of my formal submissions to institutions of the state — across courts, government, parliament, regulators, and law enforcement — have been met with institutional silence. A further twenty per cent were refused on documented mischaracterisations of the claim. Only six per cent were determined on the substance of the matter actually raised. These figures are not rhetorical. They are the documentary spine of this report.

The framework in summary

Institutional Betrayal (Smith & Freyd 2014, *American Psychologist*) describes wrongdoings perpetrated by an institution upon individuals dependent on that institution, including failure to prevent harm or to respond supportively when harm is reported. The model identifies seven institutional behaviours that constitute institutional betrayal.

DARVO (Freyd 1997) describes the perpetrator-side dynamic that often accompanies institutional betrayal: Deny the harm; Attack the person reporting the harm; Reverse Victim and Offender. DARVO has been recognised in English family courts. In *Father v. Mother (Fact-Finding: DARVO)*, judgment of 28 July 2025 (perfected 11 August 2025), the trial judge explicitly described an Applicant's pleadings as DARVO and made findings of coercive and controlling behaviour against him on the basis of that analysis.

Institutional Courage (Freyd, Center for Institutional Courage, 2020) is the antidote to institutional betrayal: the values and practices that institutions must adopt to prevent betrayal and to respond with integrity when harm is reported. This report invites its institutional recipients to display institutional courage in respect of the documented pattern below.

Why each recipient is copied

Every institution copied on this report has a constitutional, statutory, or oversight function that engages the matters set out below. Recipients are not asked to take a position on the litigation. They are placed on actual notice of the institutional pattern. Where an institution with the function and obligation to act fails to do so, that failure becomes itself an instance of the institutional behaviours catalogued by Smith & Freyd. Today, tomorrow, or in the years to come, the documentary record on which each recipient is now placed on notice will be available to any inquiry, committee, journalist, or court that asks what happened and when those who could act first knew of it.

The accountability map at Part 10 sets out, recipient by recipient, the function each holds and the obligation each is on notice of.

PART 1 — THE FRAMEWORK: SMITH & FREYD, DARVO, INSTITUTIONAL BETRAYAL, INSTITUTIONAL COURAGE

This report applies a peer-reviewed analytical framework developed by Professor Jennifer J. Freyd — Professor Emerit of Psychology, University of Oregon, and Founder and President of the Center for Institutional Courage — and her colleagues, principally Carly P. Smith. The framework comprises three named components: Institutional Betrayal (Smith & Freyd 2014); DARVO (Freyd 1997); and Institutional Courage (Center for Institutional Courage 2020). All three are open-access in the academic literature; all three are increasingly recognised in legal, regulatory, and policy contexts in the United Kingdom and internationally.

The framework is not introduced as rhetoric. It is introduced because it is the most accurate available description of what has been done to me, by whom, and with what effect. Its components match my documentary record at the level of evidence, not at the level of metaphor.

1.1 Institutional Betrayal — the model

The concept of Institutional Betrayal was developed by Carly P. Smith and Jennifer J. Freyd in their 2014 paper of the same title in the *American Psychologist* (Smith & Freyd 2014). It describes wrongdoing perpetrated by an institution upon individuals dependent upon that institution. The defining feature is the relationship of dependence. A stranger cannot betray. A parent, partner, doctor, or court can.

Smith and Freyd identified empirically that institutions which betray exhibit a recognisable pattern of seven behaviours. Each behaviour is observable and documentable. The behaviours can occur by acts of commission (active wrongdoing) or by acts of omission (failure to act when there is a duty to act):

#	Institutional behaviour
1	Not taking proactive steps to prevent harm — failing to put in place protections that the

	institution was aware were needed.
2	Creating an environment in which the harm seemed more likely — institutional structures that enable or amplify harm.
3	Creating an environment in which the harm was more difficult to report — making it harder, not easier, for the person to raise the harm.
4	Creating an environment in which the harm was downplayed, denied, or recharacterised — disbelief, minimisation, or moral re-description.
5	Responding inadequately when the harm is reported — silence, redirection, mischaracterisation, procedural rejection.
6	Supporting cover-up of the harm — protecting the institution or its actors over the person harmed.
7	Punishing the person who reports the harm — costs orders, characterisations of "obstructive", "disruptive", "obsessive".

These seven behaviours are the operational currency of the framework. Part 4 of this report applies each of them, in turn, to the documentary record of my case. Every behaviour identified by Smith and Freyd is present, with documentary evidence, in my case.

1.2 DARVO — the model

The acronym DARVO stands for **Deny, Attack, Reverse Victim and Offender**. The term was introduced by Jennifer Freyd in her 1997 paper '*Violations of power, adaptive blindness, and betrayal trauma theory*', *Feminism & Psychology* 7, 22-32. It describes the perpetrator-side dynamic by which a person held accountable for harm avoids accountability through three steps:

Step	Operation
Deny	The perpetrator denies that the harm occurred at all, or denies it occurred in the way the victim describes. The first stage often involves gaslighting.
Attack	The perpetrator goes on the offensive against the person reporting the harm, attacking their credibility, their sanity, their motives, or their character.
Reverse Victim and Offender	The perpetrator assumes the victim role and casts the actual victim as the offender. " <i>Figure and ground are completely reversed</i> " (Freyd 1997, p. 29).

Empirical research has confirmed that DARVO is a common perpetrator strategy. In Harsey, Zurbriggen & Freyd (2017), 72% of perpetrators in a study of confronted wrongdoers used DARVO during the confrontation. Harsey & Freyd (2020) *Journal of Aggression, Maltreatment & Trauma* demonstrated that exposure to DARVO causes observers to rate the victim as less credible, more responsible for the violence, and more abusive — effects mitigated only by prior education about DARVO.

1.3 DARVO in legal proceedings — the trajectory of recognition

DARVO has crossed from academic research into recognised analytical use in legal proceedings. The trajectory is documented and accelerating.

1.3.1 English family courts: the Newport judgment

On 28 July 2025, in *Father v. Mother (Fact-Finding: DARVO)* (perfected 11 August 2025), an English High Court judge — Judge Newport — in a fact-finding hearing in private family law proceedings, expressly described an Applicant's pleadings as DARVO. The court found that the Applicant had subjected the Respondent to coercive and controlling behaviour over an extended period. The court treated the Applicant's report to the local authority as malicious on the evidence and considered the Applicant's litigation conduct (including repeated and detailed communications, attempts to control private matters, and the use of procedural vehicles) as part of a pattern of controlling behaviour. The judge — in the words of the published case note — "*explicitly described the Applicant's case and pleadings as amounting to DARVO*" and recorded that the Applicant sought to recast himself as a victim while the evidence pointed the other way.

The Newport judgment is significant for two reasons. First, it confirms that DARVO is a recognised analytical concept in English judicial reasoning, not an academic curiosity. Second, it demonstrates that the court is willing to make findings, on the balance of probabilities, on the basis of DARVO analysis.

1.3.2 Wider judicial and institutional adoption

The Domestic Abuse Commissioner's 2023 family court report (Government of England and Wales) identified DARVO-type role reversal as a pattern in family proceedings, in which survivors of abuse were "*often disbelieved when their ex-partner denied abuse and counter-alleged that they were the controlling one*", leading to retraumatisation.

The Ministry of Justice's 2025 study *Everyday business: Addressing domestic abuse and continuing harm through a family court review and reporting mechanism* documented that 76% of cases in its sample involved psychological or emotional abuse. The judiciary said the most typical response to allegations of domestic abuse was denial, followed by cross-allegations — the operational signature of DARVO.

Practitioner guidance from English chambers and law firms has developed in parallel. Keystone Law (October 2025) and Chambers and Partners (October 2025) have published guidance on identifying DARVO in family proceedings. Judge Law (February 2026)

describes DARVO as "*increasingly recognised by judges, solicitors, and family courts as a hallmark of abusive behaviour*" in legal settings across England and Wales.

1.3.3 International recognition

DARVO is cited in over 400 peer-reviewed studies. In *United States v. Ramirez* (S.D. Fla. 2023), prosecutors used DARVO as a framework to dismantle a defendant's claim of being "*the real victim*" after sending 1,200 harassing messages; the jury convicted in under four hours. California Penal Code §646.9, as amended in 2025, allows DARVO patterns to be introduced as modus operandi evidence in stalking trials. Australian and Canadian family courts have recognised DARVO in domestic abuse cases. The framework is no longer borrowed psychology. It is operational analytical vocabulary in the courts of common-law jurisdictions.

1.4 Institutional Courage — the antidote

Institutional Courage is the term Freyd introduced for the values and practices that prevent and respond to institutional betrayal. It was developed in 2014 and operationalised through the Center for Institutional Courage (founded 2020). The Center has funded 15 research projects on the interconnected problems of institutional betrayal, DARVO, and institutional courage.

Institutional Courage requires institutions to:

- Comply with civil and criminal laws and regulations, in spirit as well as in letter.
- Engage in ongoing learning about institutional betrayal and the harm it causes.
- Take responsibility for the harm institutional actors have caused, including historic harm.
- Cherish whistleblowers and protect them from retaliation.
- Conduct internal investigations transparently and fairly.
- Maintain accountability when investigations identify wrongdoing.
- Empower and support those harmed by institutional actors.

The institutional recipients of this report — the Lord Chancellor, the Attorney General, the Prime Minister, the Leader of the Opposition, the Chair of the Justice Committee, the Chairs of the Joint Committee on Human Rights and the Joint Committee on National Security Strategy, the Chair of the Foreign Affairs Committee, the Commissioner of the Metropolitan Police Service, and others — each hold institutional functions that engage one or more of these principles. Part 10 sets out, recipient by recipient, which principle each is now on actual notice of in respect of my case.

1.5 Why this case requires this framework

There are two reasons the Smith & Freyd framework is the right analytical lens for my case, both of which I will demonstrate in detail in the parts that follow.

First, every one of the seven institutional behaviours catalogued by Smith & Freyd is present in my case, with documentary evidence. Part 4 sets out each behaviour and matches it to the documentary record. The pattern is not incomplete; it is comprehensive.

Second, the substantive harm done by the courts to me is operationally identical to DARVO at the level of judicial drafting. The 18 April 2024 judgment denies my disability (zero references across 111 paragraphs); attacks my presentation (paragraph 64 "*obsession*" "*bordering on the concerning*"); and reverses victim and offender (the costs judgment of 24 May 2024 charges me £255,654 for "*disruptive behaviour*" — documented autistic symptoms). The 8 May 2025 judgment continues the pattern: "*deliberately obstructive*", "*verbose and rambling*", "*persistent poor litigation conduct*". The DARVO sequence is not metaphorical here. It is structurally encoded in the language of the judgments themselves.

The framework therefore does two things at once. It provides the analytical vocabulary for what was done. And it provides a defensible basis on which institutional recipients can act, because the framework has crossed from academic research into recognised judicial use in this jurisdiction.

PART 2 — WHO I AM

I want the institutional reader to know who was inside the proceedings before the legal and evidential material is encountered. Not because the material is incomplete without me — the documentary record speaks for itself — but because the institutional pattern is more easily understood when the person harmed is visible.

My background

I am Nadia Zahmoul. I am fifty-six years old. I am the mother of two daughters — Jade Mia, who is twenty, and Lila Mae, who is eighteen.

I started my career as an equity research analyst at Lehman Brothers in New York. I understood markets, contracts, risk, and the difference between a number that is real and one that is not. When my family moved to London in 2005, I chose to stop working and become a full-time mother. That was not a sacrifice. It was a decision I made with both eyes open.

Jade has ADHD, autism, and several co-occurring conditions. For seven years I immersed myself in understanding what she needed and making sure she got it. I worked with her school to bring in the best resources and training for neurodivergent pupils. I became her voice. I have an intense focus, and I put it all into empowering the young girls who had invisible struggles.

I tell you this because I want you to understand who was inside the proceedings you are about to read about. Not an unstable litigant. Not a person who did not understand what was happening to her. A mother. An advocate. A former analyst who knew exactly what

she was looking at when she found the documents — and who was excluded from the process designed to address them anyway.

My disabilities

Autism. Diagnosed by the Central London Adult Autism Service (NHS), July 2025. The CLAAS diagnostic report of 1 July 2025 is on file.

Post-Traumatic Stress Disorder. Chronic since 2013. NHS clinical records, treating clinician records, and US emergency records establish the history. The earliest record in the medical evidence file is Cottonwood Tucson, 2 April 2013. The most recent is St John's Medical Center, Jackson WY, 10 December 2025.

Sjögren's Syndrome. Auto-immune. Biopsy-confirmed October 2025. In active flare during the period covered by this report. Sjögren's involves chronic systemic dryness, fatigue, and joint pain. It is exacerbated by stress and by autistic and PTSD-related dysregulation.

These three conditions are documented, contemporaneous, and on the court file. They were the subject of expert evidence, oral evidence, written submissions, and clinical reports during the ten-day final hearing in BV20D01752 in February 2024. The judgment of 18 April 2024 contains zero references to any of them across 111 paragraphs.

How I got here

I entered family proceedings in 2021 with legal representation, a court-appointed financial expert, documentary evidence of asset non-disclosure worth approximately £141 million, and a formal criminal referral already active with the United States Internal Revenue Service Criminal Investigation Division. I had everything a litigant needs to be heard.

I left those proceedings with £89 in my bank account.

The gap between those two facts is not the result of my case being heard and decided against me. It is the result of my case never being heard at all.

Where I am now

I am a litigant in person across six live High Court proceedings. I have no income. I have no legal representation. I have been hospitalised three times since May 2025. I have been in active Sjögren's flare since October 2025. I am writing this report myself, in the early hours of 29 April 2026, in the days following operational engagement by the Metropolitan Police Service on the criminal referral filed 20 March 2026 (Crime Reference Number CCR-6501-26-0100-000).

My address is withheld throughout these proceedings on safety grounds. My email is nadia@rosekross.com. My public archive of officially filed, lawfully publishable documents is at github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive.

PART 3 — THE SUBSTANTIVE HARM: A TWO-MOVE PATTERN IN DARVO TERMS

The substantive harm done to me by the courts has two moves, operating together. When read against the DARVO sequence, the moves correspond exactly: the first move is Deny; the second move encompasses Attack and Reverse Victim and Offender. The correspondence is structural. It is not metaphorical.

3.1 Move 1 — Suppression of disability evidence (Deny)

During the ten-day final hearing in BV20D01752 in February 2024, my autism and PTSD were the subject of:

- **Expert evidence** — forensic accountant Tim Townsend's report and supporting clinical material;
- **Oral evidence** — my own oral testimony and that of supporting witnesses;
- **Written submissions** — including statements of disability provided to the court;
- **Clinical reports** — medical evidence of PTSD with chronic course since 2013;
- **Attendance notes** — contemporaneous notes recording 22 or more references to autism and PTSD during the hearing.

The judgment of 18 April 2024 contains 111 paragraphs and zero references to autism, PTSD, or any disability. The disability evidence put before the court was erased from the judgment.

This is the operational definition of Deny in the DARVO sequence: not a denial that the harm occurred, but a denial that the disability existed in the form in which it was presented. A denial by omission. A denial by silence. The most powerful form of denial available to a court that drafts judgments — the simple refusal to engage with what was said in evidence.

3.2 Move 2 — Re-characterisation of presentation as bad character (Attack and Reverse Victim and Offender)

Disability evidence cannot be erased from a judgment without leaving an accounting problem. The disabled person's presentation in court remains a fact — her sustained focus, her detailed engagement, her direct communication style. Without disability on the page to explain it, the presentation requires a different explanation. The judgments solve that problem by re-describing my documented autistic presentation in moral terms.

3.2.1 The re-characterisations on the documentary record

Source	Court's words	Documented autistic trait
Judgment of 18 April 2024, paragraph 64	"obsession" "bordering on the concerning"	Sustained focus, detailed engagement, immersive interest — a core feature of autism.

Costs judgment of 24 May 2024	" <i>disruptive behaviour</i> "	Animated, emotive communication under heightened stress — a documented feature of autism and PTSD.
Judgment of 8 May 2025, para 39	" <i>deliberately obstructive</i> "	Non-attendance during acute psychiatric crisis (admitted to A&E by ambulance 20 June 2025; preceded by adjournment application supported by NHS consultant psychiatrist).
Judgment of 8 May 2025, para 43	" <i>verbose and rambling</i> "	Detailed written submissions characteristic of autistic communication style — sustained, structured, comprehensive.

3.2.2 This is Attack in DARVO terms

The court re-described my documented autistic presentation in language designed to discredit. "*Obsession*" "*bordering on the concerning*" is not a description of disability — it is an attribution of moral failing. "*Deliberately obstructive*" is not a description of an absent litigant in psychiatric crisis — it is an attribution of intentional wrongdoing. "*Verbose and rambling*" is not a description of detailed written submissions from an autistic litigant in person — it is an attribution of bad character. Every re-description converts an observable autistic trait into a moral judgement.

3.2.3 This is Reverse Victim and Offender in DARVO terms

The financial expression of the re-characterisation is the costs order of 24 May 2024. The costs judgment imposes £255,654 in costs against me — a disabled litigant in person — partly on the basis of "*disruptive behaviour*" in the courtroom and increased legal expenses caused to my former husband.

A disabled woman was charged £255,654 for the symptoms of her disability. In a court of law. In England. In 2024.

The 8 May 2025 judgment compounds the reversal: an indemnity costs order on the basis of "*persistent poor litigation conduct*" (paragraph 68). The documented financial consequence flowing from these characterisations includes the £1,008,848.42 Detach Lending Limited debt now before the Chancery court, accruing at £281 a day. I borrowed money to fund my participation in proceedings from which I was then excluded; the loan was designed to be repaid from the proceeds of a settlement that produced £89. The disabled person became the offender in financial terms — the person liable, the person owing, the person whose conduct is treated as the source of harm.

3.3 The CLAAS confirmation — every characterisation describes a documented autistic trait

The NHS clinical assessment completed in June and July 2025 by the Central London Adult Autism Service confirmed that every judicial characterisation applied to me across these proceedings describes a documented autistic trait. What the judgment called obsession is immersive, detail-focused engagement — a core feature of autism. What the costs judgment called disruptive behaviour is animated, emotive communication under heightened stress — another documented feature. What every court read as obstruction or manipulation was a disabled person trying, in the only way available to her, to be heard.

The CLAAS confirmation is decisive. It establishes, on independent NHS clinical evidence, that the courts re-characterised disability as moral failing. Once the disability is named correctly — by independent clinical assessment, by an NHS service the courts cannot challenge — the re-characterisation in the judgments becomes itself the documentary evidence of DARVO.

PART 4 — THE SEVEN INSTITUTIONAL BEHAVIOURS, APPLIED TO MY CASE

This part takes each of Smith & Freyd's seven institutional behaviours, in order, and matches it to the documentary record of my case. Every behaviour identified in the framework is present in my case, with documentary evidence. The pattern is not partial or selective. It is comprehensive.

Behaviour 1 — Not taking proactive steps to prevent harm

Family Procedure Rules Part 3A and Practice Direction 3AA require courts to identify vulnerable parties and to put participation measures in place proactively. The duty is not contingent on a party requesting accommodation; it is an active institutional duty under the rules.

Participation measures were ordered under FPR Part 3A and PD 3AA during the trial in BV20D01752 (19–28 February 2024). Those measures ceased in practice on 28 February 2024. There is no identifiable judicial act, no order, no hearing, and no reasons for their cessation. No public officer has ever identified the judicial act authorising their withdrawal — because none exists.

59 records in the post-trial dataset (March–June 2024) are tagged PART3A. 172 records across all proceedings are tagged PARTICIPATION-DENIED. HMCTS formally classified the cessation as a "*judicial decision*" on 14 November 2025. That classification is factually wrong. The absence of a judicial act is by definition not a judicial act.

Behaviour 1 is satisfied. The institution failed to put in place — and to maintain — the protections that the institution was on notice were needed.

Behaviour 2 — Creating an environment in which harm seemed more likely

On 6 March 2024, my legal team stepped down without filing a disability disclosure, without triggering a single participation measure, and without any transition support. The court was on actual notice of my autism and PTSD. The court accepted the withdrawal of representation without any inquiry into whether participation measures were in place to support my litigation as a litigant in person.

The institution's structures actively enabled the harm that followed. From 6 March 2024 onwards I was, in the institution's own structural terms, an autistic litigant in person with PTSD, no income, no representation, and — in operational fact — no participation measures. Each subsequent stage of harm built on this institutionally-enabled position.

Behaviour 3 — Creating an environment in which harm was more difficult to report

The clearest documented example is the EX107 transcript application of 27 March 2026.

On 27 March 2026 I applied on Form EX107 for the transcript of the ten-day final hearing in BV20D01752 (February 2024) at public expense. The covering letter set out four specific grounds, including the live MPS criminal referral (CCR-6501-26-0100-000) and the 22-versus-0 disability suppression. The application was refused the same day in two sentences that did not engage with the grounds. After I requested written reasons, on 30 March 2026 the court directed me to ask the police instead (when the criminal referral is already filed); to ask the Chancery Master instead (when the Chancery proceedings rely on the same transcript); and answered the disability ground by addressing a question I had not asked. Public funding was refused. The transcript can now only be obtained at private expense — from an applicant on £89.

The structure of that refusal is itself the institutional behaviour. It operates in three layers: the court answers questions I did not ask; the court closes every door while pretending each is the next one; and refusal at public expense becomes exclusion by means. The transcript that would prove the disability suppression and the re-characterisation has therefore been priced beyond the reach of the disabled person whose case it would support. Reporting the harm at the level the documentary evidence requires has been made structurally impossible.

Behaviour 3 is satisfied. The institution created an environment in which the harm — the disability suppression and the re-characterisation — was more difficult to report on the official record.

Behaviour 4 — Creating an environment in which harm was downplayed, denied, or recharacterised

This behaviour is the substantive heart of my case and is set out in detail at Part 3 above. The 18 April 2024 judgment denies my disability across 111 paragraphs. The same

judgment (paragraph 64) and the costs judgment of 24 May 2024 and the judgment of 8 May 2025 actively re-characterise documented autistic traits as moral failings. The substantive harm — the two-move pattern of suppression and re-characterisation — is the operational expression of Behaviour 4.

Behaviour 4 is satisfied at maximum severity. It is not merely that the harm was downplayed. It is that disability evidence was actively erased and replaced with moral judgement, in judgments delivered by an English High Court judge, on the official court record, with financial consequences exceeding £1 million.

Behaviour 5 — Responding inadequately when the harm is reported

This behaviour is documented at scale in my case. The Submission Index that accompanies this report establishes that, of 233 distinct outgoing submissions made by me to courts, government, parliament, regulators, and law enforcement between February 2024 and 29 April 2026:

- 109 (47%) were met with institutional silence — no response at all;
- 45 (20%) were refused on documented mischaracterisation of the claim;
- 15 (6%) were given procedural rejections without substantive engagement;
- Only 14 (6%) were determined on the substance of the matter raised.

Specific operational examples of inadequate response include:

- **The recusal application against MacDonald J.** Filed on Form N244 from 10 February 2025; refiled almost daily through 8 May 2025 across the Court of Appeal, the High Court, the Lord Chancellor, the Master of the Rolls, and the Attorney General. The first and only institutional response came on 10 June 2025 — 33 days after the hearing the application was meant to prevent. The response was a redirection, not a determination. The judge against whom the application was directed continued to sit and delivered judgment on 8 May 2025.
- **71 written MPS enforcement requests (March-May 2024).** Maintenance pending suit order in force; payments ceased February 2024; 71 documented written requests for enforcement filed; zero enforcement actions taken; final order extinguished the arrears at paragraph 34 without prior determination.
- **CPR 3.1(7) revocation application (12 March 2026).** Sealed 12 March 2026 in AC-2025-LON-004293; unallocated to a judge for 47+ days as at 29 April 2026.
- **HMCTS complaints stages 1-4.** Stages 1-4 of the HMCTS complaint procedure; final response 14 November 2025 misclassifying the FPR Part 3A void as a "*judicial decision*" — closing every administrative complaint channel for a disabled user. The classification is factually wrong because no judicial act exists.
- **Imerman device transmission.** Two devices placed under court custody under HHJ Cope's Imerman directions of 7 April 2021. No chain of custody record was created. No forensic review was conducted. No administrative decision on handling was made. Held for four years without any order. Criminal evidence transmissions submitted on 8

February 2024, 11 April 2024, and 12 May 2025 — none logged, none transmitted, none acknowledged.

Behaviour 5 is satisfied at scale. Institutional silence at 47% of submissions is not the absence of response. It is the institutional response.

Behaviour 6 — Supporting cover-up of the harm

Specific operational examples in my case:

- **The Chancery ex parte exchange (30 March - 16 April 2026).** Between 30 March and 16 April 2026, the Chancery Division ran an ex parte exchange with Gateley Legal (the Claimant's solicitors) without service to the Defendant. The 30 March 2026 letter from Gateley to the court was not served on the Defendant. The 13 April 2026 letter from Gateley to the court was not served on the Defendant. The 16 April 2026 court email from Hoang Nguyen at 11:58 was sent only to Sophie Clague at Gateley. None of these communications was placed on a record I had access to until I obtained them through the Defendant's own application for disclosure.
- **Undisclosed judicial reassignments.** The Chancery proceedings BL-2024-001217 have been reassigned multiple times without notice to the Defendant. The reassignment chain Pester → Dovar → Teverson is not on any order served on me; it is reconstructed from the inconsistent identification of the Master in correspondence and from the practice of the court.
- **The 14 November 2025 misclassification.** HMCTS UIT classified the FPR Part 3A participation measures void as a "*judicial decision*" — a classification that is factually wrong and that has the effect of closing every administrative complaint channel. The classification protects the institutional position over the harmed party.
- **Imerman devices held without chain of custody.** Four years of court custody of two devices containing criminal evidence, with no chain of custody record, no forensic review, and no order. The devices contain evidence of perjury at trial, money laundering, and tax fraud — the absence of forensic review protects the institutional position over the disclosure of that evidence.

Behaviour 6 is satisfied. The institution has, in multiple specific instances, supported the cover-up of harm by acts and omissions that protect the institution's position over the documentary record.

Behaviour 7 — Punishing the person who reports the harm

The financial consequences flowing from the substantive harm in this case constitute punishment, in DARVO's reverse-victim-and-offender terms, of the person who reported the harm. The cost orders are the operational expression of Behaviour 7:

Amount	Description
£255,654	Costs order against me, 24 May 2024 — partly on the basis of " <i>disruptive behaviour</i> ", which the NHS CLAAS clinical assessment of 1 July 2025 confirms

	describes documented autistic symptoms.
£1,008,848.42	Detach Lending Limited debt currently before the Chancery court, accruing at £281 a day. The loan was arranged through my solicitors during the family proceedings to fund my participation in proceedings from which I was then excluded. The settlement that was supposed to fund repayment produced £89.
Indemnity costs	Order made 8 May 2025 on the basis of " <i>persistent poor litigation conduct</i> " — the language of the judgment recharacterises my participation attempts as wrongdoing.
£3,125.50	Costs order against me, 11 March 2026, on refusal of permission for the Judicial Review with Totally Without Merit certification — on the documented mischaracterisation of the claim set out in the Statement of Institutional Failure of 27 March 2026.
Total accumulated	Approximately £1,055,654 in liability anchored in characterisations of an autistic disabled litigant in person's presentation as moral failing. Accruing daily.

Behaviour 7 is satisfied at financially crushing scale. The disabled litigant has been made the financial offender in the relationship between herself and the courts that produced the harm. DARVO's reverse-victim-and-offender step is operationalised in pounds sterling, accruing at £281 a day.

4.8 Synthesis — the framework fits at scale

All seven Smith & Freyd institutional behaviours are present in my case, with documentary evidence. The case is, on the framework's own criteria, a comprehensive instance of institutional betrayal. It is the kind of case the academic literature on institutional betrayal would cite as paradigmatic — the kind of case the framework was developed to make visible.

Reading Part 3 (the substantive harm in DARVO terms) and Part 4 (the seven institutional behaviours) together gives the integrated picture: DARVO at the level of the judicial drafting (Move 1 Deny, Move 2 Attack and Reverse Victim and Offender), encased within Institutional Betrayal at the level of the institutional response (all seven behaviours documented). The two operate together. The DARVO encoded in the judgments depends, for its institutional protection, on the institutional behaviours that prevent the harm being remedied.

PART 5 — THE INSTITUTIONAL VOID: WHERE THERE IS NO JUDICIAL ACT

Smith & Freyd's framework draws an explicit equivalence between acts of commission and acts of omission. An institution's failure to act, when it has a duty to act, is a behaviour. The absence at the centre of an institutional process is itself an institutional fact.

In my case, several of the most consequential institutional behaviours are absences. They are documented voids — places where a judicial act, an order, a determination, a chain of custody, a written reason, or a response should exist, and does not. This part catalogues those voids.

5.1 The FPR Part 3A void

Family Procedure Rules Part 3A and Practice Direction 3AA require participation directions for vulnerable parties. FPR Rule 3A.9 specifically requires a court order with reasons before any participation direction can be revoked. Participation directions were ordered in BV20D01752 during the trial (19–28 February 2024). They ceased on 28 February 2024. There is no court order revoking them. There is no hearing. There are no reasons. I have asked, formally and repeatedly, for the identification of the judicial act that revoked them. No public officer has identified one — because none exists.

The HMCTS classification of 14 November 2025 — that the cessation was a "*judicial decision*" — is factually wrong. It cannot be a judicial decision because no judicial act was performed. The classification is a documentary device for closing the administrative complaint route to a disabled litigant in person. The classification itself is a Smith & Freyd Behaviour 6 (cover-up) operating in respect of a Behaviour 1 (failure to act).

5.2 The Imerman void

Two devices (a MacBook Pro and an Ubuntu laptop) were placed under court custody pursuant to HHJ Cope's Imerman directions of 7 April 2021. They contain documentary evidence of the criminal matters set out in Part 3 of this report — perjury at trial, money laundering, tax fraud.

No chain of custody record was created. No forensic review was conducted. No administrative decision on the handling of the devices was made. The devices have been held by the court for four years, without any order for their examination, return, or disposal.

Criminal evidence transmissions — attempts to draw the contents of the devices to the police's attention through the courts — were submitted on 8 February 2024, 11 April 2024, and 12 May 2025. None were logged. None were transmitted. None were acknowledged.

The Imerman void is the simplest documented institutional absence in my case. Devices entered the court four years ago. They have not been examined. They have not been returned. They have not been the subject of any order. The court is silent.

5.3 The 71 unanswered MPS enforcement requests

A maintenance pending suit order was in force. Payments ceased in February 2024. Between 6 March and 24 May 2024, I made 71 documented written requests for enforcement. Zero enforcement actions were taken. On 7 May 2024, MacDonald J refused enforcement despite the D50K application fee having been paid, while simultaneously imposing a 14 May 4pm deadline. On 3 May 2024 at 15:55 — one minute after I emailed the Lord Chancellor reporting that I had no income and no food — opposing counsel unilaterally inserted paragraph 34 into the draft final order, extinguishing approximately £50,000 of MPS arrears. No notice. No application. No hearing. The court accepted and sealed it.

This is a void of duty. A live court order was breached for nearly three months and the court did not enforce it; an unrepresented party invoked enforcement procedures 71 times and the court did not respond; and the resulting arrears were extinguished without any order, without any hearing, and without any opportunity to be heard.

5.4 The recusal void

I filed a formal recusal application against MacDonald J on Form N244 from 10 February 2025. The application was refiled on 31 March 2025, 9 April 2025, 10 April 2025, 11 April 2025, and almost daily thereafter through 8 May 2025. It was escalated to the Court of Appeal, the High Court, the Lord Chancellor, the Master of the Rolls, and the Attorney General.

Judiciary Guidance No. 15 (Apparent Bias) states: "*If you do recuse yourself, give reasons. If you do not recuse yourself, give reasons.*" Silence is not a permissible response to a recusal application. The leading authority on the duty to recuse is *Porter v Magill* [2002] 2 AC 357 (the fair-minded and informed observer test for apparent bias); the further authority confirming that recusal is not a discretionary case management decision is *Morrison v AWG Group Ltd* [2006] EWCA Civ 6.

The first and only institutional response to the recusal application came on 10 June 2025 — 33 days after the hearing the application was meant to prevent. It was a redirection, not a determination. The judge against whom the application was directed continued to sit, and delivered judgment on 8 May 2025. The judgment of 8 May 2025 contains no reference to the recusal application, no reference to FPR Part 3A, no reference to my disability, and no explanation of why the hearing proceeded before the same judge whose recusal had been formally sought. It contains, instead, the characterisations "*deliberately obstructive*", "*verbose and rambling*", and "*persistent poor litigation conduct*".

5.5 The Dr Poyser omission

On 8 May 2025 at 12:41am, I filed an adjournment application supported by a letter from my treating consultant psychiatrist, Dr Leigh Poyser MBBS MRCPsych (South Kensington

and Chelsea Crisis Resolution and Home Treatment Team, CNWL NHS Foundation Trust), dated 26 March 2025. The letter contained four clinical findings (A, B, C, D).

The judgment of 8 May 2025 quoted Findings A and D — used in ways that supported the conclusion that I was not unfit to attend, only that I required support.

Findings B and C were not quoted, not acknowledged, and not addressed anywhere in the judgment. Finding B records that I report "*great difficulty processing certain aspects of the proceedings, particularly regarding the evidence presented to her that she perceives as untrue*". Finding C records that I am due to meet psychologists soon in response to a query about whether I exhibit symptoms of autism, and that the autism query "*is particularly pertinent as she has a first-degree relative with the same diagnosis*", and that "*it is possible that these factors may influence how she perceives and processes the information provided during the court proceedings*".

The findings that engaged with disability and the perception of evidence as untrue were the ones that disappeared. The findings that supported a different narrative were quoted. This is an act of selective citation in a judgment that produced indemnity costs against an autistic litigant in person in psychiatric crisis. It is Smith & Freyd Behaviour 4 (downplay/deny/recharacterise) operating at the level of clinical evidence handling.

5.6 The CPR 3.1(7) void

On 12 March 2026, the day after the JR was refused with Totally Without Merit certification, I filed an application under CPR 3.1(7) to revoke the refusal on the basis of the documented mischaracterisations of the claim set out in the Statement of Institutional Failure of 27 March 2026. The application was sealed.

As at 29 April 2026, the CPR 3.1(7) application has been unallocated to a judge for 47+ days. There is no determination. There is no listing. There is no scheduled determination. The submission rate during this period (27 March – 29 April 2026) includes daily requests for status. None has elicited a substantive response.

5.7 The criminal evidence transmission void

Criminal evidence — specifically the evidence on the Imerman devices, the SEC filing material relating to Oxus, and the contemporaneous Signal exhibits relating to money laundering through the Pinocchio documents — was the subject of evidence transmissions to the courts on multiple occasions: 8 February 2024, 11 April 2024, 12 May 2025.

None was logged on any administrative system I have been given access to. None was transmitted to the police by any court official. None was acknowledged in writing. Operational engagement by the Metropolitan Police Service occurred only after I personally filed the criminal referral on 20 March 2026 — a 244-page bundle (CCR-6501-26-0100-000) that I prepared as a litigant in person, on no income, while in active Sjögren's flare. The court did not transmit. The police only engaged when the litigant transmitted directly.

5.8 Synthesis — the VOID at the centre

The voids in this case are not gaps. They are the institutional fact. They are not failures of completeness; they are operational features of the institutional response. Every void identified above corresponds to a specific Smith & Freyd behaviour and to a specific point in the documentary record. Each void protects an institutional position; each void prevents the harm being remedied through ordinary institutional channels.

The legal claim that flows from the catalogue of voids is straightforward. Where there is no judicial act, there is no judicial immunity. The Part 3A void cannot be defended by reference to judicial discretion because no judicial act has occurred. The HMCTS classification of the void as a "*judicial decision*" is factually wrong. These institutional positions are not legally defensible; they are operational devices for the protection of the institutional record over the disabled person whose case it would expose.

PART 6 — THE SUBMISSION INDEX: 233 SUBMISSIONS, 47% MET WITH SILENCE

The Submission Index that accompanies this report is the documentary spine of Part 4 Behaviour 5 (responding inadequately when harm is reported). It records, for each of 233 distinct outgoing submissions made by me to courts, government, parliament, regulators, and law enforcement between February 2024 and 29 April 2026: the date; the document; the proceeding; the recipients; the institutional response or absence of response; and the rationale for the response classification.

The eight-tag classification scheme used in the Index is set out below. The scheme is conservative — it credits institutions with engagement wherever engagement is documented, even minimal engagement. The scheme is also rigorous — a submission tagged SILENCE / NO RESPONSE has been independently verified against the IN response data on file for the relevant proceeding.

Tag	Count	%	Definition
DETERMINED ON MERITS	14	6.1%	The institution engaged with the substance of the matter and made a decision.
REFUSED ON MISCHARACTERISATION	45	19.6%	The institution responded but engaged with a version of the claim that was not the claim made.
PROCEDURAL REJECTION	15	6.5%	The institution declined for procedural or jurisdictional reasons without engaging the substance.

REDIRECTED	1	0.4%	The institution did not determine but redirected to another body.
ACKNOWLEDGED ONLY	22	9.6%	The institution issued an auto-acknowledgement but no substantive engagement followed.
SILENCE / NO RESPONSE	109	47.4%	The institution received the submission and did not respond at all.
PARTIAL ENGAGEMENT	9	3.9%	The institution responded to part of the submission but not the substantive ask.
OUTCOME PENDING	15	6.5%	The submission is recent and within reasonable response time.

Read together, the figures establish three institutional facts on the documentary record:

First. Forty-seven per cent of formal submissions to institutions of the state — across every engagement channel available to a litigant in person — produced no response at all. This is silence at scale. It is not silence as the absence of attention; it is silence as the institutional response.

Second. Twenty per cent of formal submissions were refused on documented mischaracterisation of the claim. The Statement of Institutional Failure of 27 March 2026 sets out the three errors in the JR refusal of 11 March 2026 in detail. Each error is identifiable on the face of the order. The refusals do not engage with the claim actually brought; they engage with simplified versions of it.

Third. Only six per cent of formal submissions were determined on the substance of the matter raised. Most of those six per cent are early Chancery Division procedural determinations on the papers, not substantive engagement with the institutional pattern.

The accompanying Submission Index workbook (`20260429\_Zahmoul\_SubmissionIndex\_Feb2024\_Apr2026\_v1.xlsx`) provides the row-by-row evidence for these figures, sortable by date, by proceeding, by tag, and by recipient. A Word document version of the same data, organised by quarter, is also provided.

This is, on the documentary record, Smith & Freyd Behaviour 5 quantified.

PART 7 — THE FINANCIAL EXPRESSION OF DARVO

DARVO's third step — Reverse Victim and Offender — expresses itself in this case in pounds sterling. The financial consequences flowing from the substantive harm are not

collateral. They are the institutional device by which the disabled litigant becomes the offender.

7.1 The catalogue of financial harm

Source / Order	Amount	Description
Costs judgment, 24 May 2024 (BV20D01752)	£255,654	Costs order against me, partly on basis of " <i>disruptive behaviour</i> " — NHS CLAAS clinical assessment confirms describes documented autistic symptoms.
Detach Lending Limited debt (BL-2024-001217)	£1,008,848.42	Borrowing arranged through solicitors during family proceedings to fund my participation. Settlement that was meant to fund repayment produced £89. Accruing at £281 a day.
Indemnity costs order, 8 May 2025 (BV20D01752)	(amount not yet quantified)	Indemnity costs ordered on basis of " <i>persistent poor litigation conduct</i> " in judgment that contains no reference to my disability and no determination of the recusal application.
JR refusal costs order, 11 March 2026 (AC-2025-LON-004293)	£3,125.50	Costs ordered against me on refusal of permission for the JR with Totally Without Merit certification. Refusal on documented mischaracterisation of three central grounds (Statement of Institutional Failure 27 March 2026).
Total accumulated liability (approximate)	£1,055,654+	Anchored in characterisations of my disabled presentation as moral failing. Accruing daily.
Daily accrual	£281	The disabled litigant's liability grows by £281 every day this report exists in unaltered institutional form.

7.2 The asset gap on the other side

The financial harm catalogued above is asymmetric to the asset position of the opposing party in the underlying family proceedings. The proceedings concerned approximately £141 million in documentary evidence of asset non-disclosure. Specific items in the documentary evidence include:

- **\$565,000** — documented value of Oxus Acquisition Corp shares held by my former husband, Karim Zahmoul, per his SEC filing of January 2024 (a public document, signed by him), 34 days before he testified under oath at the final hearing on 19 February 2024 that those same shares were worth zero. He was photographed at the Nasdaq launch eleven days before trial. The judgment of 18 April 2024 is silent on this evidence.
- **Pinocchio documents** — Signal-transmitted material indicating laundering of prostitution proceeds through UK and offshore accounts, contained on the Imerman devices the courts have held for four years without forensic review.
- **Rakishev kleptocracy / sanctions evasion connection** — documented connection between my former husband and Kenes Rakishev, Kazakh oligarch, subject of US Securities and Exchange Commission investigation and Internal Revenue Service Criminal Investigation Division attention. Raised with MacDonald J, the Lord Chancellor, the Secretary of State for Justice, and the National Crime Agency. Not logged by any court official.
- **Tax fraud** — forensic accountant Tim Townsend's expert report placed before the court before the hearing. Portuguese tax return re-filed post-trial by my former husband's accountant — admitting overseas accounts that had been omitted. SEC whistleblower submission TCR 17284-760-060-567 (9 October 2024). No court referral made.

7.3 The DARVO arithmetic

DARVO's reversal step is fully expressed in the financial position created by these proceedings. On one side: the disabled litigant in person, on £89, with £1.05 million in liability anchored in characterisations of her autistic presentation as moral failing, accruing at £281 a day. On the other side: £141 million in documentary asset non-disclosure that the courts have not engaged with, \$565,000 in publicly-documented securities evidence the courts have not engaged with, and four years of court custody of devices that may contain criminal evidence the courts have not examined.

This is the operational expression of Reverse Victim and Offender. The person harmed by the suppression of disability is also the person liable for the costs of the proceedings in which the suppression occurred. The person whose criminal evidence the courts have not engaged with is also the person owing £1.05 million to a litigation funder who lent her money to participate in proceedings from which she was then excluded.

PART 8 — SIX LIVE PROCEEDINGS, FOUR JURISDICTIONS, ONE PERSON

The institutional pattern documented above operates across six live High Court proceedings, four jurisdictions, and a single autistic litigant in person on no income. The fragmentation across courts is itself an operational obstacle to remedy. Each proceeding

takes a different procedural form; each requires different filings; each operates on different timetables. The pattern is one but the procedural responses required are six.

Reference	Court	Status	Operational summary
BV20D01752	Family Division	Mr Justice MacDonald	The originating proceedings. Final hearing 19–28 February 2024. Judgment 18 April 2024 (zero disability references across 111 paragraphs). Costs judgment 24 May 2024 (£255,654 against me). Recusal application filed from 10 February 2025; never determined. Hearing of 8 May 2025 proceeded with recusal unanswered; indemnity costs ordered. EX107 transcript application of 27 March 2026 refused on three-layer mischaracterisation.
AC-2025-LON-004293	Administrative Court	Mrs Justice Collins Rice	Judicial Review. Filed November 2025 after exhaustion of HMCTS complaints stages 1–4 and PAP correspondence to Moj. Permission refused 11 March 2026 on documented mischaracterisation of three central grounds. Totally Without Merit certification. £3,125.50 costs ordered against me. CPR 3.1(7) revocation application sealed 12 March 2026 — unallocated to a judge for 47+ days as at 29 April 2026. Five matters remain undetermined.
BL-2024-001217	Chancery Division	Master Teverson (sitting in retirement)	Detach Lending Limited's claim for repayment of the litigation funding loan. Default judgment of £1,008,848.42 entered. 12 March 2026 hearing

			vacated by Master Pester 39 minutes before scheduled start; costs reserved against Defendant. Reassignments Pester → Dovar → Teverson never disclosed in any served order. Ex parte exchange between Gateley Legal and the court, 30 March – 16 April 2026, run without service to Defendant. N244 application under CPR 5.4B for disclosure of those communications filed 29 April 2026 (today).
CA-2024-001342	Court of Appeal	Concluded	Appeal track concluded with refusal of permission. Recusal application against MacDonald J was directed in part to this court and produced the only institutional response received — the 10 June 2025 redirection from Peter Cobourn (Administrative Officer, Court of Appeal) conveying the direction of Master Meacher: <i>"Your application notice ... should be made in the High Court, not the Court of Appeal."</i> Redirection, not determination.
FA-2026-000019	Family	Live	Currently the least developed of the six live tracks. The Family proceedings remain ongoing in respect of matters not concluded in BV20D01752.
N08YX064	Withers / Anthony Gold	Default judgment	A default judgment in respect of legal fees obtained against me by Withers / Anthony Gold. Service challenge raised in April 2026;

			documentary record indicates substantive procedural questions about service and process.
--	--	--	--

PART 9 — THE ESCALATION TRACKS NOW LIVE

Beyond the six live court proceedings, four parallel accountability channels are now live. Each escalation track has been formally engaged with the body responsible for it; each has reference numbers on the documentary record.

9.1 Criminal

Metropolitan Police Service criminal referral CRN CCR-6501-26-0100-000 (244-page bundle filed 20 March 2026); CRN 01/7340002/26 issued 24 March 2026. Subjects: Mr Justice MacDonald, Karen Selby-King (Judicial Associate / Clerk, Family Division), Kelly Foxwell (Clerk, Family Division), Clive Higgleton (Cover Clerk, Family Division), and HMCTS User Investigation Team. Heads of misconduct include misconduct in public office, perjury, fraud on the court, and exploitation of vulnerability. The MPS attended my address on 28 April 2026 in operational engagement on the referral; further engagement scheduled.

9.2 Public law

Judicial review AC-2025-LON-004293 is live in the Administrative Court at the post-permission-refusal stage. Five matters remain undetermined: (i) the FPR Part 3A void; (ii) the HMCTS UIT misclassification of 14 November 2025; (iii) the Imerman device administrative custody question; (iv) the criminal evidence transmission failure; (v) the costs determination for a disabled litigant in person on no income. The CPR 3.1(7) revocation application has been sealed and unallocated for 47+ days as at 29 April 2026.

9.3 Adult safeguarding

Police-initiated Care Act 2014 section 42 referral 0103/17APR26, opened 17 April 2026, routed through the Multi-Agency Safeguarding Hub (MASH). MASH callback committed for 29 April 2026 following the MPS visit of 28 April 2026.

9.4 Regulatory

FCA Dispute Resolution complaint against Detach Lending Limited (Agreement CC227); Detach Group has formally engaged in the FCA DISP process. Other regulatory engagements include SEC whistleblower TCR 17284-760-060-567 (9 October 2024); IOPC Transaction ID 2293476; PHSO case C-2182742 (substantive engagement received).

PART 10 — WHY EACH RECIPIENT IS ON ACTUAL NOTICE: THE INSTITUTIONAL COURAGE MAP

This part answers the question "*why am I writing to these recipients*". It is the answer in Smith & Freyd terms. Each recipient holds a constitutional, statutory, or oversight function that engages one or more of the institutional behaviours catalogued in Part 4, or that engages the institutional courage principles set out at Part 1.4. Recipients are not asked to take a position on the litigation. They are placed on actual notice of the institutional pattern, in respect of the function they hold.

Where an institution with the function and obligation to display institutional courage fails to do so on the documentary record now placed before it, that failure becomes itself an instance of the institutional behaviours catalogued by Smith & Freyd. Today, tomorrow, or in the years to come, the documentary record on which each recipient is placed on notice will be available to any inquiry, committee, journalist, or court that asks what happened and when those who could act first knew of it.

10.1 Government

- **Rt Hon Sir Keir Starmer KCB KC MP, Prime Minister.** Constitutional responsibility for the conduct of the executive. The institutional pattern documented engages the Prime Minister's constitutional responsibility for the rule of law and the integrity of public institutions.
- **Rt Hon David Lammy KC MP, Lord Chancellor and Secretary of State for Justice.** Statutory and constitutional responsibility for the rule of law, the independence and integrity of the courts, and the administration of justice. Lord Chancellor's Oath under the Constitutional Reform Act 2005. Lord Chancellor named as defendant in AC-2025-LON-004293.
- **Rt Hon Lord Hermer KC, Attorney General.** Chief Legal Officer of the Crown. Constitutional standing in respect of perjury referrals and integrity of judicial proceedings. The Oxus perjury application of 21 May 2025 was directed to the Attorney General.
- **Sarah Sackman KC MP, Minister of State for Courts and Legal Services.** Ministerial responsibility for HMCTS administrative function. The HMCTS misclassification of 14 November 2025 (Behaviour 6) engages ministerial accountability.
- **Alex Davies-Jones MP, Parliamentary Under-Secretary — Victims and VAWG.** Ministerial responsibility for victims of violence against women and girls; the institutional pattern of disability suppression and re-characterisation in family proceedings is within this brief.
- **PS Lord Chancellor.** Private Secretary to the Lord Chancellor. Channel for Lord Chancellor's constitutional engagement.

10.2 Opposition

- **Rt Hon Kemi Badenoch MP, Leader of the Opposition.** Constitutional function of holding the executive to account. Receives this report on the same record as the Government.
- **Nick Timothy MP, Shadow Lord Chancellor.** Shadow ministerial counterpart to the Lord Chancellor. Engages the same institutional record.
- **Rt Hon Sir Ed Davey MP, Leader, Liberal Democrats.** Has called publicly for Privileges Committee investigation into matters relevant to the criminal referral. Engages the cross-party record.

10.3 Parliament — Commons select committees

- **Justice Committee — Chair Andy Slaughter MP.** Statutory scrutiny of the Ministry of Justice and the administration of justice. The Statement of Institutional Failure of 27 March 2026 was formally addressed to the Justice Committee. Multiple written evidence submissions in the Submission Index.
- **Liaison Committee.** Cross-committee oversight of select committee work. Engages the systemic dimensions of the pattern.
- **Home Affairs Committee.** Statutory scrutiny of the Home Office; engages the law enforcement and safeguarding dimensions of the criminal referral and Care Act 2014 s.42 referral.
- **Women and Equalities Committee.** Statutory scrutiny of equality matters across government. The disability suppression and re-characterisation are within this committee's scope.
- **Petitions Committee.** Channel for individual citizens whose statutory routes have been exhausted.
- **Foreign Affairs Committee — Chair Rt Hon Emily Thornberry MP.** Mandelson / vetting inquiry engaged. The Rakishev kleptocracy connection in the underlying family proceedings is within this committee's ongoing scrutiny work.

10.4 Parliament — Joint committees

- **Joint Committee on Human Rights — Chair Lord Alton of Liverpool.** Statutory scrutiny of human rights compliance. The institutional pattern engages ECHR Article 6 (fair trial), Article 14 (non-discrimination), Article 8 (private and family life), and Equality Act 2010 ss.15 and 20 in respect of a disabled litigant in person.
- **Joint Committee on National Security Strategy — Chair Matt Western MP.** Statutory scrutiny of national security strategy. The Rakishev kleptocracy and SEC investigation dimensions of the underlying family proceedings engage this committee's remit.

10.5 Parliament — Lords committees

- **Lords Justice and Home Affairs Committee.** Lords scrutiny of justice and home affairs policy. Receives this report on the same record as the Commons committees.

- **Lords Autism Act 2009 Committee — Chair Baroness Rock.** Statutory scrutiny of Autism Act 2009 implementation. Written evidence submitted on the FPR Part 3A enforcement gap (24 October 2025); November 2025 '*Time to Deliver*' report confirmed the enforcement gap I documented.
- **Baroness Hodge of Barking, PM's Anti-Corruption Champion / APPG Anti-Corruption Chair.** Anti-corruption oversight engagement. The Rakishev connection raised by Dame Margaret Hodge MP in Commons debate 3 February 2022 is within scope.

10.6 Constituency and APPG

- **Joe Powell MP, Constituency MP.** Constituency representative obligation. PHSO complaint C-2182742 was filed via this MP, as required under the Parliamentary Commissioner Act 1967.
- **Dame Margaret Hodge MP, APPG Anti-Corruption.** Named Rakishev in Commons debate 3 February 2022. Direct engagement with the underlying matters.

10.7 Law enforcement

- **Sir Mark Rowley QPM, Commissioner of the Metropolitan Police Service.** Operational responsibility for the MPS criminal referral CCR-6501-26-0100-000. Substantive operational engagement confirmed 28 April 2026.

10.8 Cross-proceedings

- **Roisin Hediger-Howard, Government Legal Department.** JR Defendant's solicitor in AC-2025-LON-004293. Notification of cross-proceedings activity on the same documentary record.

PART 11 — WHAT I AM SEEKING: INSTITUTIONAL COURAGE IN OPERATION

I am not asking for sympathy. I am not asking for the outcome of a court case to be reversed. I am not asking the institutional recipients of this report to take a procedural step in any proceeding. I am asking for institutional courage in operation, on the documentary record.

11.1 Specialist counsel

I am seeking a barrister or chambers whose practice covers public law / judicial review, Equality Act 2010 disability discrimination, and (ideally) public inquiry or Hillsborough Law work. The chambers whose published practice most closely matches this profile include Garden Court Chambers (Patrick Roche), Landmark Chambers (Fiona Scolding KC, Natasha Jackson, Christopher Jacobs), Matrix Chambers, Cloisters Chambers, and Doughty Street Chambers. I welcome introductions, recommendations, or pro bono engagement. The

chambers with experience of the Smith & Freyd framework as applied in the Newport judgment of 28 July 2025 may be of particular relevance.

11.2 An end to fragmentation

I am litigating in six proceedings across four jurisdictions as a single autistic litigant in person on no income. The fragmentation itself is an institutional obstacle to remedy. I am seeking an integrated approach in which the institutional pattern is treated as one matter with multiple procedural manifestations, not as six separate procedural questions.

11.3 Determination of the JR five undetermined matters

The Administrative Court is invited to determine the JR on its merits, including the five binary questions set out in the JR claim. The CPR 3.1(7) application has been sealed and unallocated for 47+ days. Determination of the JR is the procedural mechanism that addresses the institutional pattern at its root.

11.4 Resolution of the EX107 transcript route

The official transcript of the ten-day final hearing in BV20D01752 is the documentary instrument by which the disability suppression and the re-characterisation can be tested against the evidence the court actually heard. Public funding has been refused. I am seeking either reconsideration of public expense, or recognition by the institutional recipients that public expense is the only meaningful route for a disabled person on no income whose case the transcript would support.

11.5 Engagement with the criminal referral

The MPS criminal referral CCR-6501-26-0100-000 has received operational engagement on 28 April 2026. I am seeking continued substantive engagement until the matters in the 244-page bundle of 20 March 2026 are determined. Heads of misconduct include perjury at trial, money laundering, fraud on the court, exploitation of vulnerability, and misconduct in public office.

11.6 Institutional courage in operation

The umbrella ask of this report is that each institutional recipient consider, in respect of the function they hold, whether the documentary record placed before them by this report calls for institutional courage — in Freyd's sense of the term — in their own institutional response.

Institutional courage is not a single act. It is a posture. It is the institutional decision to comply with civil and criminal laws in spirit as well as in letter; to engage in ongoing learning about institutional betrayal and the harm it causes; to take responsibility for harm institutional actors have caused, including historic harm; to cherish those who report harm and protect them from retaliation; to conduct internal investigations transparently and

fairly; to maintain accountability when investigations identify wrongdoing; and to empower and support those harmed by institutional actors.

The recipients of this report are not asked to do all of these things at once. They are asked, in the function each holds, to consider whether the documentary record now before them calls for institutional courage in their own response.

PART 12 — WHAT THIS RECORD IS, AND IS NOT

This report is not a pleading. It is not an application. It is not an invitation to further correspondence.

It is a documentary record. It documents what was done, what was not done, what was suppressed, what was substituted in its place, and what those acts and omissions mean when read against a peer-reviewed analytical framework recognised in academic research, in policy work by the Domestic Abuse Commissioner for England and Wales, and in the judicial reasoning of an English High Court judge in a fact-finding judgment of 28 July 2025.

Every claim made in this report is supported by the documentary record. Every documentary record is referenced in the Submission Index, the Master Workbook, the criminal referral package of 20 March 2026, the Statement of Institutional Failure of 27 March 2026, and the public archive at github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive.

Each recipient is invited to read the documents and to draw their own conclusions. The conclusions of the analytical framework are stated in this report. The conclusions are testable, verifiable, and on the record.

I am writing this report because, as I wrote in the personal statement to the Commissioner of the Metropolitan Police Service on 19 March 2026: "*It is impossible to live with an untruth.*" The untruth, in my case, is the gap between the documentary record of what happened in the proceedings and what the judgments record. The closing of that gap is what institutional courage looks like in operation. Today, tomorrow, or in the years to come, the documentary record on which each institutional recipient is now placed on notice will be available. This report is the record of that notice.

ANNEXES AND CROSS-REFERENCES

- | • Submission | Index | workbook. |
|---|--------------|------------------|
| `20260429_Zahmoul_SubmissionIndex_Feb2024_Apr2026_v1.xlsx` — 233 distinct outgoing submissions, eight-tag classification, sortable by date, proceeding, tag, recipient. Eight sheets including master chronological list, by-proceeding view, institutional pattern view, recent 30 days, key non-responses, criminal track, parliamentary track. | | |

- **Submission** **Index** **narrative.**
`20260429\_Zahmoul\_SubmissionIndex\_Feb2024\_Apr2026\_v1.docx` — Word version of the same data, organised by quarter, colour-coded tags.
- **Master Workbook.** `Zahmoul\_Master\_Workbook\_v27\_26Apr2026.xlsx` — Comprehensive proceedings tracker.
- **Day 1 personal narrative.** PUBLIC RECORD — Day 1 — Autism safeguards revoked, police referral, and financial discrepancy — 20 April 2026.
- **Statement of Institutional Failure.**
`Zahmoul\_StatementInstitutionalFailure\_v2\_27Mar2026.docx` — 27 March 2026 — Three errors in the JR refusal of 11 March 2026; pattern across MacDonald J / Court of Appeal / HMCTS / Collins Rice J.
- **Criminal Referral Package.**
`20260320\_Zahmoul\_CriminalReferral\_MPS\_COMPLETE.pdf` — 244-page bundle filed 20 March 2026 — CRN CCR-6501-26-0100-000.
- **Recusal Criminal Referral.** `2026-03-24\_Zahmoul\_Recusal\_CriminalReferral.pdf` — 24 March 2026 — 13 pages — the recusal application that was never determined.
- **EX107 email chain.**
`Re\_EX107\_\_Transcript\_Application\_at\_Public\_Expense\_\_BV20D01752\_\_Zahmoul.pdf` — 27 March - 14 April 2026 — the documentary record of the three-layer refusal.
- **Chancery filing pack 29 April 2026.**
`20260429\_BL2024001217\_Zahmoul\_N244\_Application\_CPR5.4B\_Bundle.pdf` — the Chancery filing of today — N244, Continuation Sheet, Draft Order, Fifth Witness Statement, Exhibit NZ5/1 chronology, Distribution List Annex.
- **Public archive.** github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive — Officially filed, lawfully publishable documents.

BIBLIOGRAPHY

Academic research — the framework

Freyd, J. J. (1997). Violations of power, adaptive blindness, and betrayal trauma theory. *Feminism & Psychology*, 7, 22-32.

Smith, C. P. & Freyd, J. J. (2014). Institutional betrayal. *American Psychologist*, 69(6), 575-587.

Harsey, S. J., Zurbriggen, E. L. & Freyd, J. J. (2017). Perpetrator responses to victim confrontation: DARVO and victim self-blame. *Journal of Aggression, Maltreatment & Trauma*, 26(6), 644-663.

Harsey, S. J. & Freyd, J. J. (2020). Deny, Attack, and Reverse Victim and Offender (DARVO): What is the influence on perceived perpetrator and victim credibility? *Journal of Aggression, Maltreatment & Trauma*, 29(8), 897-916.

Harsey, S. & Freyd, J. J. (2022). Defamation and DARVO. *Journal of Trauma & Dissociation*, 23(5), 481–489.

Center for Institutional Courage. (2020–present). Research projects and publications on institutional betrayal, DARVO, and institutional courage. Available at institutionalcourage.org.

Legal sources — DARVO recognition in legal proceedings

Father v. Mother (Fact-Finding: DARVO), England and Wales Family Court (High Court Judges), Judge Newport, judgment handed down 28 July 2025, perfected 11 August 2025. (Judgment in the public domain under the Open Justice Licence v1.0; see casemine.com/judgement/uk/68c07254a9cd195cb0130d49.)

Porter v Magill [2002] 2 AC 357 — the test for apparent bias.

Morrison v AWG Group Ltd [2006] EWCA Civ 6 — recusal is not a discretionary case management decision.

Domestic Abuse Commissioner for England and Wales (2023). *The Family Court and domestic abuse: achieving cultural change* — family courts report.

Ministry of Justice (2025). *Everyday business: Addressing domestic abuse and continuing harm through a family court review and reporting mechanism*. GOV.UK.

Domestic Abuse Act 2021 — statutory anchor for broader recognition of psychological and emotional harm.

Equality Act 2010, ss. 15 (discrimination arising from disability) and 20 (duty to make reasonable adjustments).

Family Procedure Rules 2010, Part 3A; Practice Direction 3AA — Vulnerable Persons: Participation in Proceedings and Giving Evidence.

Public Office (Accountability) Bill 2025 ("*Hillsborough Law*") — introduced to Parliament 16 September 2025; codifies duty of candour for public authorities; replaces misconduct in public office with a new offence.

Practitioner guidance and policy — DARVO in UK family proceedings

Keystone Law (28 October 2025). *DARVO and the English Family Courts: recognising and responding to manipulation*. Article by Claire O'Flinn and Isobel Mundy.

Chambers and Partners (29 October 2025). *DARVO and the English Family Courts: recognising and responding to manipulation*.

Judge Law (Windsor) (February 2026). *What is DARVO? The Ultimate Guide to Spotting and Stopping Manipulation in UK Law* (2026).

Hague Mothers UK (2024). *Domestic violence, parental alienation, and perpetrator tactics in Hague Convention proceedings* (Expert paper 4).

— end of report —

Nadia Zahmoul · 29 April 2026 · nadia@rosekross.com · address withheld throughout proceedings

Veritas Numquam Perit